

Sheo Pujan Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 8 July 2022 · Writ-C No. 18812 of 2022 · Writ-C No. 18812 of 2022 · **Disposed of; EE to decide pending 6.5 objection in four weeks.**

HEADNOTE

Writ seeking adjustment of amounts already paid against previous electricity bills and security, where an objection already lay before the Executive Engineer, disposed of by directing the competent authority to decide the pending paragraph 6.5 representation within four weeks.

FACTUAL SUMMARY

Sheo Pujan Yadav sought a mandamus directing the distribution licensee to adjust amounts already paid against previous electricity bills and the security deposit. He had filed an objection dated 17 May 2022 before the Executive Engineer. Counsel agreed the grievance was to be decided under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner was willing to deposit any remaining amount once the bill was corrected. Counsel for the electricity department stated a decision would be taken within four weeks.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending billing objection remitted to Executive Engineer

HOLDING

Where the consumer has already filed an objection before the Executive Engineer claiming adjustment of amounts paid against previous bills and security, and counsel agree the grievance is to be decided under paragraph 6.5 of the U.P. Electricity Supply Code, 2005, the writ is disposed of with a direction to the competent authority to decide the pending objection within four weeks. ¶ 1

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided The pending 17 May 2022 objection before the Executive Engineer was directed to be decided under paragraph 6.5 within four weeks, without a merits examination of the claimed bill adjustments. ¶ 1

clause-6.5-alternate-remedy-to-writ The Court accepted counsel's agreement that the billing-adjustment grievance was to be decided under paragraph 6.5 and disposed of the writ without granting or refusing the claimed adjustments. ¶ 1

billing-objection-to-executive-engineer-under-6.5 The petitioner's objection seeking adjustment of prior payments and security against electricity bills was treated as a paragraph 6.5 representation for decision by the Executive Engineer. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER AMOUNTS ALREADY PAID AGAINST PREVIOUS BILLS AND THE SECURITY DEPOSIT WERE LIABLE TO BE ADJUSTED, AND WHETHER THE BILL REQUIRED CORRECTION.

The Court did not examine the bill or the claimed adjustments on merits. ¶ 1